

# Master Services Agreement (Cloud Infrastructure 2026)

*CONFIDENTIAL & PROPRIETARY LEGAL INSTRUMENT*

## Section 1.1 — Definitions & Construction

Section 1.1 Definitions: In this Master Services Agreement, 'Agreement' means this document together with all active Statements of Work and Service Orders. 'Confidential Information' has the meaning set forth in Section 6. 'Service Levels' means the guaranteed uptime availability set forth in Section 3.

## Section 3.2 — Service Level Credits & Uptime

Section 3.2 Service Level Commitments: Provider guarantees 99.9% Monthly Uptime Percentage. If Monthly Uptime falls below 99.9% but above 99.0%, Customer is entitled to a 10% Service Credit. If Uptime falls below 95.0%, Customer may terminate pursuant to Section 12.2.

## Section 4.1 — Fees, Invoicing, and Payment Terms

Section 4.1 Payment Terms: Invoices are rendered monthly on the first business day. Customer shall pay all undisputed invoice amounts within thirty (30) days of the invoice date. Late payments accrue interest at 1.5% per month or the maximum statutory rate.

## Section 6.1 — Confidentiality and Standard of Care

Section 6.1 Confidentiality: Receiving Party agrees to protect Disclosing Party's Confidential Information using at least reasonable care, and not less than the degree of care used for its own confidential materials. This obligation survives termination for five (5) years, provided Trade Secrets shall remain confidential in perpetuity.

## Section 8.2 — Limitation of Liability & Cap

Section 8.2 Limitation of Liability: Except for indemnification obligations under Section 9 or breach of Section 6, the aggregate liability of either party under this Agreement shall in no event exceed the total fees paid by Customer during the twelve (12) months preceding the incident giving rise to liability.

## Section 9.1 — Mutual Indemnification

Section 9.1 Provider Indemnification: Provider shall defend, indemnify, and hold harmless Customer against any third-party claim alleging that the Cloud Infrastructure infringes any patent, copyright, or trademark, subject to prompt written notification.

## Section 12.1 — Initial Term and Automatic Renewal

Section 12.1 Term: This Agreement commences on the Effective Date and continues for an initial term of thirty-six (36) months, automatically renewing for successive one (1) year terms unless either party gives written notice of non-renewal at least sixty (60) days prior to expiration.

## Section 12.2 — Termination for Cause and Material Breach

Section 12.2 Termination for Cause / Material Breach: Either Party may terminate this Agreement or any specific SOW immediately upon written notice if the other Party commits a material breach of any provision hereof and fails to cure such material breach within thirty (30) calendar days after receipt of written notice specifying the breach with reasonable detail.

### **Section 12.3 — Termination for Convenience**

Section 12.3 Termination for Convenience: Customer may terminate this Agreement or any active Service Order for convenience without cause at any time upon providing at least sixty (60) days prior written notice to Provider. In the event Customer exercises termination for convenience, Customer shall pay all earned fees for Services performed through the effective termination date.

### **Section 12.4 — Effect of Termination & Data Transition**

Section 12.4 Effect of Termination: Upon termination or expiration, Provider shall immediately grant Customer access to export all Customer Data for a period of ninety (90) days. After ninety (90) days, Provider shall irreversibly purge Customer Data from production storage.

### **Section 14.1 — Assignment and Sublicensing**

Section 14.1 Assignment and Sublicensing: Neither Party may assign or transfer this Agreement, whether by merger, reorganization, or operation of law, without prior written consent of the other Party, except that either Party may assign to an Affiliate under common control.

### **Section 15.1 — Governing Law and Jurisdiction**

Section 15.1 Governing Law and Forum: This Agreement and any disputes arising hereunder shall be governed exclusively by the laws of the State of Delaware, without regard to choice of law rules. Exclusive jurisdiction and venue shall lie in the state and federal courts located in New Castle County, Delaware.